

SENATE FLOOR VERSION

March 4, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 601

By: Rader

An Act relating to the death penalty; creating the Death Penalty Moratorium Act; providing short title; staying the execution of judgments in all death penalty cases; prohibiting the Court of Criminal Appeals from ordering the execution of judgments in death penalty cases; prohibiting the setting of execution dates; vacating all current execution dates; suspending all statutes related to death penalty sentences; returning death penalty statutes to full force and effect upon repeal of the Death Penalty Moratorium Act; providing construing provisions; creating the Death Penalty Reform Task Force; providing purpose of the task force; providing for membership; establishing date for appointing members; setting organizational meetings; providing for the selection of a chair and vice chair; stating primary function of the task force; authorizing the task force to collaborate with other agencies, organizations, entities, and educational institutions; providing quorum requirements; making meetings of the task force subject to the Oklahoma Open Meeting Act; prohibiting compensation or travel reimbursement; directing the Attorney General to provide staffing and administrative support; requiring the submission of certain report to the Legislature and Governor; providing for codification; providing for noncodification; and declaring an emergency.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law to be codified
3 in the Oklahoma Statutes as Section 1001a-1 of Title 22, unless
4 there is created a duplication in numbering, reads as follows:

5 This act shall be known and may be cited as the "Death Penalty
6 Moratorium Act".

7 SECTION 2. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1001a-2 of Title 22, unless
9 there is created a duplication in numbering, reads as follows:

10 A. The execution of the judgment in all cases where a sentence
11 of death has been imposed is hereby stayed until June 1, 2027.

12 B. The Court of Criminal Appeals shall not order execution of
13 the judgment in cases where a sentence of death has been imposed
14 while the stay provided for in subsection A of this section is in
15 effect.

16 C. No further execution dates shall be set by the Court of
17 Criminal Appeals or by the Governor while the stay provided for in
18 subsection A of this section is in effect.

19 D. All execution dates currently in place at the time of the
20 effective date of this act shall be vacated.

21 SECTION 3. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 1001a-3 of Title 22, unless
23 there is created a duplication in numbering, reads as follows:

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1 A. The provisions of this act shall not be construed to
2 prohibit prosecutions seeking the penalty of death for new or
3 current cases.

4 B. The provisions of this act shall not be construed to vacate
5 the individual judgments in cases where a sentence of death has been
6 imposed.

7 SECTION 4. NEW LAW A new section of law not to be
8 codified in the Oklahoma Statutes reads as follows:

9 A. There is hereby created until June 1, 2027, the Death
10 Penalty Reform Task Force to study and report on the progress of
11 implementing reforms to the use of the death penalty in this state.

12 B. The task force shall be comprised of five (5) members to be
13 appointed as follows:

14 1. One member to be appointed by the President Pro Tempore of
15 the Senate;

16 2. One member to be appointed by the Minority Leader of the
17 Senate;

18 3. One member to be appointed by the Speaker of the House of
19 Representatives;

20 4. One member to be appointed by the Minority Leader of the
21 House of Representatives; and

22 5. One member to be appointed by the Governor.

23 C. Appointments to the task force shall be made within sixty
24 (60) days after the effective date of this act.

1 D. The task force shall conduct an organizational meeting no
2 later than November 1, 2025. A chair and vice chair shall be
3 selected to serve by the membership of the task force at the
4 organizational meeting. The task force may meet as often as may be
5 required to perform the duties imposed upon the task force.

6 E. The primary function of the task force shall be to create
7 reports describing in detail the degree to which the recommendations
8 contained in the 2017 Report of the Oklahoma Death Penalty Review
9 Commission have been put into effect in this state. The task force
10 may coordinate, communicate, and collaborate with state and federal
11 agencies, nonprofit organizations, public and private health care
12 entities, and state educational institutions regarding issues
13 associated with the death penalty.

14 F. A quorum of the task force members shall be required to
15 approve any final action of the task force. For purposes of this
16 subsection, three members of the task force shall constitute a
17 quorum.

18 G. The meetings of the task force shall be subject to the
19 Oklahoma Open Meeting Act.

20 H. Members of the task force shall receive no compensation or
21 travel reimbursement.

22 I. The Office of the Attorney General shall provide staff and
23 administrative support for the task force.
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1 J. The task force shall electronically submit a report of its
2 findings no later than November 30, 2026, to the President Pro
3 Tempore of the Senate, the Speaker of the House of Representatives,
4 and the Governor, such report to be supplemented and updated upon
5 the termination of the task force.

6 SECTION 5. It being immediately necessary for the preservation
7 of the public peace, health or safety, an emergency is hereby
8 declared to exist, by reason whereof this act shall take effect and
9 be in full force from and after its passage and approval.

10 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
11 March 4, 2025 - DO PASS AS AMENDED BY CS
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